Electronically FILED by Superior Court of California, County of Los Angeles on 11/21/2022 05:39 PM Sherri R. Carter, Executive Officer/Clerk of Court, by V. Bailey, Deputy Clerk

CIV-100

ATTORNEY OR PARTY WITHOUT ATTORNEY *(Name, State Bar number, and address):*
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LAW OFFICES OF ADA R. CORDERO-SACKS
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TELEPHONE NO.: (818) 343-0100 FAX NO. *(Optional):* (818) 343-0070
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ATTORNEY FOR *(Name):* Fox Normandie Apartments, LP

FOR COURT USE ONLY

SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES
STREET ADDRESS: 111 North Hill Street
MAILING ADDRESS: 111 North Hill Street
CITY AND ZIP CODE: Los Angeles, CA 90012
BRANCH NAME: Central District - Stanley Mosk Courthouse

PLAINTIFF/PETITIONER: Fox Normandie Apartments, LP
DEFENDANT/RESPONDENT: Derrick L. Beverly, an individual

REQUEST FOR (Application) ☒ **Entry of Default** ☒ **Clerk's Judgment** ☐ **Court Judgment**

CASE NUMBER: 22STUD06657

1. TO THE CLERK: On the complaint or cross-complaint filed
   a. on *(date):* 10/13/2022
   b. by *(name):* Fox Normandie Apartments, LP
   c. ☒ Enter default of defendant *(names):* Derrick L. Beverly, an individual; All Other Occupants
   d. ☐ I request a court judgment under Code of Civil Procedure sections 585(b), 585(c), 989, etc., against defendant *(names):*

   (Testimony required. Apply to the clerk for a hearing date, unless the court will enter a judgment on an affidavit under Code Civ. Proc., § *585(d).)*
   e. ☒ Enter clerk's judgment
      (1) ☒ for restitution of the premises only and issue a writ of execution on the judgment. Code of Civil Procedure section 1174(c) does not apply. (Code Civ. Proc., § 1169.)
         ☒ Include in the judgment all tenants, subtenants, named claimants, and other occupants of the premises. The *Prejudgment Claim of Right to Possession* was served in compliance with Code of Civil Procedure section 415.46.
      (2) ☐ under Code of Civil Procedure section 585(a). *(Complete the declaration under Code Civ.* Proc., § *585.5 on the reverse (item 5).)*
      (3) ☐ for default previously entered on *(date):*

2. **Judgment to be entered.**

	Amount	Credits acknowledged	Balance
a. Demand of complaint	$	$	$ 0.00
b. Statement of damages *			
(1) Special	$	$	$ 0.00
(2) General	$	$	$ 0.00
c. Interest	$	$	$ 0.00
d. Costs *(see reverse)*	$ 0.00	$	$ 0.00
e. Attorney fees	$	$	$ 0.00
f. **TOTALS**	$ 0.00	$ 0.00	$ 0.00

   g. **Daily damages** were demanded in complaint at the rate of: $ per day beginning *(date):*
   (Personal injury or wrongful death actions; Code Civ.* Proc., § *425.11.)*

3. ☒ *(Check if filed in an unlawful detainer case)* **Legal document assistant or unlawful detainer assistant** information is on the reverse *(complete item 4).*

Date: 11/21/2022

Ada R. Cordero-Sacks, Esq.
(TYPE OR PRINT NAME)

▶ _____
(SIGNATURE OF PLAINTIFF OR ATTORNEY FOR PLAINTIFF)

FOR COURT USE ONLY

(1) ☑ Default entered as requested on *(date):* 11/21/2022
(2) ☐ Default NOT entered as requested *(state reason):*

Clerk, by V. Bailey, Deputy

Form Adopted for Mandatory Use
Judicial Council of California
CIV-100 [Rev. January 1, 2007]

REQUEST FOR ENTRY OF DEFAULT
(Application to Enter Default)

American LegalNet, Inc.
www.FormsWorkflow.com

Code of Civil Procedure, §§ 585–87, 1169
www.courtinfo.ca.gov

PLAINTIFF/PETITIONER: Fox Normandie Apartments, LP DEFENDANT/RESPONDENT: Derrick L. Beverly, an individual	CASE NUMBER: 22STUD06657

4. **Legal document assistant or unlawful detainer assistant (Bus. & Prof. Code, § 6400 et seq.).** A legal document assistant or unlawful detainer assistant ☐ did ☒ did **not** for compensation give advice or assistance with this form. *(If declarant has received **any** help or advice for pay from a legal document assistant or unlawful detainer assistant, state):*
   a. Assistant's name:
   b. Street address, city, and zip code:
   c. Telephone no.:
   d. County of registration:
   e. Registration no.:
   f. Expires on *(date):*

5. ☒ **Declaration under Code of Civil Procedure Section 585.5** *(required for entry of default under Code Civ.* Proc., § *585(a)).* This action
   a. ☐ is ☒ is not on a contract or installment sale for goods or services subject to Civ. Code, § 1801 et seq. (Unruh Act),
   b. ☐ is ☒ is not on a conditional sales contract subject to Civ. Code, § 2981 et seq. (Rees-Levering Motor Vehicle Sales and Finance Act).
   c. ☐ is ☒ is not on an obligation for goods, services, loans, or extensions of credit subject to Code Civ. Proc., § 395(b).

6. **Declaration of mailing (Code Civ. Proc., § 587).** A copy of this *Request for Entry of Default* was
   a. ☐ **not mailed** to the following defendants, whose addresses are **unknown** to plaintiff or plaintiff's attorney *(names):*
   b. ☒ **mailed** first-class, postage prepaid, in a sealed envelope addressed to each defendant's attorney of record or, if none, to each defendant's last known address as follows:
      (1) Mailed on *(date):* 11/21/2022
      (2) To *(specify names and addresses shown on the envelopes):*
      Derrick L. Beverly, an individual- 849 South Normandie Avenue, Unit #101, Los Angeles, CA 90005
      All Other Occupants - 849 South Normandie Avenue, Unit #101, Los Angeles, CA 90005

I declare under penalty of perjury under the laws of the State of California that the foregoing items 4, 5, and 6 are true and correct.
Date: 11/21/2022

Karina Medina ▶ _____
(TYPE OR PRINT NAME) (SIGNATURE OF DECLARANT)

7. **Memorandum of costs** *(required if money judgment requested).* Costs and disbursements are as follows (Code Civ. Proc., § 1033.5):
   a. Clerk's filing fees.....$
   b. Process server's fees.....$
   c. Other *(specify):* _____ $
   d. _____ $
   e. **TOTAL**.....$ 0.00
   f. ☐ Costs and disbursements are waived.
   g. I am the attorney, agent, or party who claims these costs. To the best of my knowledge and belief this memorandum of costs is correct and these costs were necessarily incurred in this case.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.
Date: 11/21/2022

Ada R. Cordero-Sacks, Esq. ▶ _____
(TYPE OR PRINT NAME) (SIGNATURE OF DECLARANT)

8. ☒ **Declaration of nonmilitary status** *(required for a judgment).* No defendant named in item 1c of the application is in the military service so as to be entitled to the benefits of the Servicemembers Civil Relief Act (50 U.S.C. App. § 501 et seq.).

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.
Date: 11/21/2022

Ada R. Cordero-Sacks, Esq. ▶ _____
(TYPE OR PRINT NAME) (SIGNATURE OF DECLARANT)

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